

		<u>Opposition to Motion</u> In opposition to this motion, Respondent claims that the motion for leave should be denied because Petitioner waited until several months after discovery of the new facts to make the amendments and because the amendments would necessitate additional discovery and costs. The court finds such arguments unpersuasive. Courts may permit amendments at any stage in the proceedings, up to and including trial, so long as there is no prejudice to the adverse party. (<i>Atkinson v. Elk Corp.</i>(2003) 109 Cal.App.4th 739, 761.) Mere proximity to trial is not a sufficient reason to deny leave to amend, particularly where the moving party is the plaintiff. (<i>Honig v. Financial Corp. of America</i> (1992) 6 Cal.App.4th 960, 967.) Increased discovery and attorneys' fees are not sufficient "prejudice." As one appellate court explained: "it seems unreasonable to deny a party the right to amend where the only apparent hardship to the defendants is that they will have to defend." (<i>Landis v. Superior Court</i> (1965) 232 Cal.App.2d 548, 557.) Respondent has not shown any resulting prejudice that warrants denial of this motion. Nonetheless, the motion must be denied for reasons stated above. Before bringing any new motion for leave to amend, Petitioner is ordered to make a good faith attempt to meet and confer with Respondent as to whether the parties can reach a stipulation as to any amendments. Petitioner is ordered to give notice of this ruling.
01415738	Richardson - Trust	TENTATIVE RULING Case: Richardson - Trust 01415738 Calendar No.: 8 Date: 07/15/2026